

FILED BY: COBB, JIMMY L

***TENTATIVE RULING**

Counsel for Defendant has filed a Motion to withdraw. Counsel provided a declaration indicating that he served Defendant at the client's last known address.

After reviewing the Declaration, this court finds good cause to allow Mr. Penley to withdraw as counsel for Defendant.

Mr. Penley shall file the Order, and provide notice to Defendant.

6. 9:00 AM CASE NUMBER: L25-02002

CASE NAME: DISCOVER BANK VS. LISA KLEIN

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO ENTER JUDGMENT
PURSUANT TO STIPULATION**

FILED BY: DISCOVER BANK

***TENTATIVE RULING**

Background

Plaintiff filed, a motion to enter judgment pursuant to stipulation.

The proof of service indicates mail service on the Defendant, but there's no evidence of Defendant residing at this address. There is no Answer; no proof of service of process.

In addition, though Plaintiff has attached a purported written agreement between the parties to their Motion, the page which is alleged to have Defendant's signature (p.12 of Motion) is of incredibly poor quality, and is not very legible.

Disposition

This Motion will be continued to 9/15/26, 9am.

Plaintiff to notify Defendant of Motion and hearing date.

Plaintiff to provide clearer copy of any written agreement reflecting the signature of the Defendant.

7. 9:00 AM CASE NUMBER: L25-03590

CASE NAME: ABSOLUTE RESOLUTIONS INVESTMENTS, LLC VS. EMMANUEL GARCIA

***HEARING ON MOTION IN RE: MOTION FOR ENTERING JUDGMENT PURS TO DEF DEFAULT UNDER
STTLMNT FILED 4/27/26 BY PLN**

FILED BY: ABSOLUTE RESOLUTIONS INVESTMENTS, LLC

TENTATIVE RULING:

Background

Plaintiff filed a Motion, on 4/27/26, to vacate dismissal and enter judgment pursuant to stipulation, along with a Declaration. The Motion and its supporting documents are timely.

This Motion is unopposed.

Mail service was completed at an address for counsel of Defendant.

Analysis

The parties entered into a CCP 664.6 agreement, reflected in Exhibit One of the Declaration, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$2,245.54, plus costs, and less any credits for payments received.

The case was then dismissed.

The Defendant made payments of \$150.

Costs are \$340.96.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$2,436.50.

Plaintiff to file Order on Motion, as well as submit Judgment.

Plaintiff to serve Defendant with copy of filed Order.

8. 9:00 AM CASE NUMBER: L25-04551

CASE NAME: CAPITAL ONE, N.A. VS. LISA PERALTA

***HEARING ON MOTION FOR DISCOVERY FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACT BE DEEMED ADMITTED**

FILED BY: CAPITAL ONE, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).